

07 NCAC 04R .0304 is proposed for readoption with substantive changes as follows:

07 NCAC 04R .0304 REVIEW AND PROCESSING

~~The following steps assure that North Carolina's procedures for nomination to the National Register of Historic Places are in compliance with the federal requirements:~~

~~(4) (a) Requests for consideration by the SPRC National Register Advisory Committee (NRAC) of a property's eligibility for the National Register may originate with a staff member, SPRC NRAC member, governmental agency, property owner, or any interested citizen. The ~~report request must~~ shall be in written form and include ~~a slide of the property, the following:~~~~

(1) the property name;

(2) property location;

(3) ownership information;

(4) applicant contact information;

(5) reason for the request;

(6) physical description and brief history of the property;

(7) a map or site plan; and

(8) photographs.

~~(2) Staff begins a file on the site or property, including the information supplied, initial staff opinion concerning the property's eligibility under National Register criteria and any other pertinent material.~~

~~(3) The SHPO and appropriate (b) HPO staff shall present information on the site or property to the SPRC NRAC for review and recommendation as to whether the site or property appears to be potentially eligible for the National Register and should be placed on a list for study.~~

~~(c) The NRAC shall make a recommendation to the SHPO as to whether the site or property should be placed on a list for study.~~

~~(4) (d) The SHPO notifies shall notify the site owner or, if a district, the executive officer of the municipality or affected area, by mail of his intent to study the property. The owner is advised of the effects of listing to the property. The owner is encouraged to submit written questions and comments. The owner is urged to send any relevant information concerning the property's significance for use in study of the property. The owner or executive officer shall be advised of the effects of listing the property. The owner or executive officer may submit written questions, comments, and other relevant information concerning the property's significance for use in studying the property.~~

~~(5) Work is done by staff (e) HPO staff shall provide nomination proponents with an electronic copy of the National Register Bulletin "How to Apply the National Register Criteria for Evaluation," available at <https://www.nps.gov/nr/publications/bulletins/nrb15/> to complete a nomination or to and shall review a completed nomination-nomination drafts.~~

~~(6) Not less than 30 nor more than 75 days prior to the SPRC meeting at which the property or district will be reviewed, the SHPO sends a letter, the criteria for evaluating property to be nominated to the National Register, and a statement of the effects of listing in the National Register of Historic Places to the property owner. The text of the letter must be approved by the National Register Office. The chief executive officer of the local governmental unit is also notified~~

1 by mail of the intent to nominate, as are local historic properties commissions. The letter will notify the person when the
2 SPRC meeting is to be held and will solicit written comments. The owner is also advised that he may object to the
3 nomination of the property to the National Register. In the case of a historic district, each owner must be notified by mail
4 if there are fewer than 50 property owners within the district. If there are more than 50 owners in the district, the SHPO
5 provides legal notice in a local newspaper worded in accordance with a notice provided by the National Register of Historic
6 Places. If a property owner objects to the nomination of his property, or if a majority of owners within a proposed historic
7 district object to the nomination, the SPRC and the SHPO may decide to send the nomination to the National Register of
8 Historic Places for a determination of eligibility.

9 ~~(7) — SPRC meets and nominations are considered for approval. A majority of the committee must be present, and a~~
10 ~~majority of the entire committee must vote to approve.~~

11 ~~(8) — SHPO signs nomination forms approved by the SPRC.~~

12 ~~(9) — SHPO submits the nominations and written comments received concerning the significance of a property to the~~
13 ~~Keeper of the National Register of Historic Places, National Park Service, Department of the Interior, Washington, D.C.~~
14 ~~20240.~~

15 ~~(10)(f)~~ Following review by the Keeper of the National Register, Register and receipt by the SHPO from that office of
16 notice of approval or rejection of the nomination, the SHPO ~~sends~~ shall send to the property owner and chief executive
17 officer of the local governmental unit notification of the disposition of the ~~nomination~~, nomination and, if approved, a
18 certificate signed by the SHPO stating that the property is listed in the National Register of Historic Places.

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20 *History Note: Authority G.S. 121-8(b); 143B-62; 36 C.F.R. 60.6, 60.11.*